

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                |                                     |                           |                                                       |                                    |                                 |
|------------------------------------------------------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Christopher Conway                                                            | Team:<br>Squad #4                   | CCRB Case #:<br>201500894 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                                |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 01/15/2015 , Monday, 02/09/2015<br>7:00 AM, Thursday, 02/12/2015 | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>43           | 18 Mo. SOL<br>8/9/2016                                | EO SOL<br>8/9/2016                 |                                 |
| Date/Time CV Reported<br>Mon, 02/09/2015 8:31 AM                                               | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 02/09/2015 8:31 AM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. DT3 Anthony Irizarry | 05414  | 899377 | WARRSEC |
| 2. DT3 Kevin Murphy     | 00614  | 900527 | WARRSEC |

| Officer(s)             | Allegation                                                                         | Investigator Recommendation |
|------------------------|------------------------------------------------------------------------------------|-----------------------------|
| A.DT3 Anthony Irizarry | Abuse: Det. Anthony Irizarry damaged § 87(2)(b)'s property on February 9, 2015.    | § 87(2)(b)                  |
| B.DT3 Anthony Irizarry | Abuse: Det. Anthony Irizarry searched § 87(2)(b) in the Bronx on February 9, 2015. | § 87(2)(b)                  |
| C.DT3 Kevin Murphy     | Abuse: Det. Kevin Murphy searched § 87(2)(b) in the Bronx on February 9, 2015.     | § 87(2)(b)                  |
| D.DT3 Kevin Murphy     | Abuse: Det. Kevin Murphy threatened to arrest § 87(2)(b) on February 12, 2015.     | § 87(2)(b)                  |

### Case Summary

On February 9, 2015, § 87(2)(b) filed this complaint with the CCRB by phone. She complained that at around 7:00 a.m. on both February 9, 2015, and February 12, 2015, Det. Kevin Murphy and Det. Anthony Irizarry of the Bronx Warrant Squad came to her apartment door seeking to arrest her boyfriend, § 87(2)(b). On February 9, 2015, Det. Irizarry unscrewed her peephole from the door (**Allegation A**) and both officers looked inside (**Allegations B and C**). On February 12, 2015, Det. Kevin Murphy threatened to arrest § 87(2)(b) for harboring a fugitive (**Allegation D**) (CCRB complaint encl. 4a; CCRB statement encl. 5a-d).

### Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- A FOIL request to the Office of the Comptroller indicated that as of April 3, 2015, § 87(2)(b) has not filed a notice of claim in regards to this particular complaint (encl. 10a).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[redacted]  
[redacted]  
[redacted]  
[redacted]  
[redacted]  
[redacted]  
[redacted]  
[redacted]  
[redacted]

### Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) § 87(2)(b)  
[redacted]  
[redacted]
- Det. Murphy has had no substantiated allegations filed against him in his twenty-three-year tenure (encl. 2a).
- Det. Irizarry has had no substantiated allegations filed against him in his twenty-three-year tenure (encl. 2b-c).
- § 87(2)(g)  
[redacted]

### Police Documentation

- Det. Murphy stated that § 87(2)(b) had an i-Card, while Det. Irizarry stated that at the time of the incident § 87(2)(b) had an i-Card as well as two open warrants. This i-Card did not use the address of § 87(2)(b); Det. Murphy stated he obtained that address from a DIR between § 87(2)(b) and § 87(2)(b) § 87(2)(b) allegedly stabbed § 87(2)(b) at her apartment there), and confirmed it when § 87(2)(b) other girlfriend stated “he is staying on § 87(2)(b).”
- The investigation was unable to obtain any i-Cards or warrants, as the case is still open. However, the investigation did confirm there were no arrest warrants or search warrants active for § 87(2)(b) or § 87(2)(b) at the time of the incident.

## Finding and Recommendations

### Recommendations

**Allegation A—Abuse of Authority: Det. Anthony Irizarry damaged § 87(2)(b) s property on February 9, 2015.**

**Allegation B—Abuse of Authority: Det. Anthony Irizarry searched § 87(2)(b) in the Bronx on February 9, 2015.**

**Allegation C—Abuse of Authority: Det. Kevin Murphy searched § 87(2)(b) in the Bronx on February 9, 2015.**

It is undisputed that Det. Irizarry intentionally unscrewed the peephole of § 87(2)(b) for the purpose of viewing inside. Both Det. Irizarry and Det. Murphy looked inside and made eye contact with § 87(2)(b) who was upset by the damage to her door and invasion of privacy in her apartment.

Det. Murphy and Det. Irizarry were seeking § 87(2)(b) in relation to a grand larceny. It is undisputed that the detectives had no arrest warrant or i-card listing § 87(2)(b) as § 87(2)(b) address (Det. Murphy's statement encl. 7f-g; Det. Irizarry's statement encl. 8g-h). Det. Murphy, the investigating officer, said that he received information from one of § 87(2)(b) other girlfriends that § 87(2)(b) was "on Watson Avenue" and the DIR filled out from when § 87(2)(b) stabbed § 87(2)(b) in apartment #§ 87(2)(b) at no point did they believe that to be his address, or have a search warrant for that location. Det. Murphy explained that they believed § 87(2)(b) might be there due to § 87(2)(b) girlfriend's testimony, the DIR, and § 87(2)(b)'s reluctance to open the door.

U.S. Supreme Court case *Steagald v. United States* 451 U.S. 204 (1981) (encl. 1b-o) holds that an arrest warrant is not sufficient under the Fourth Amendment to search the home of a third party unless exigent circumstances are present. New York State Criminal Procedure Law 690.05 subsection 2 (encl. 1a) also holds that a separate warrant is needed to arrest the subject of a warrant in a third-party residence.

Det. Irizarry described his reasoning for removing the peephole as in relation to officer safety. After twenty minutes of arguing at the door, Det. Irizarry unscrewed the peephole to look through to make sure that § 87(2)(b) was not holding § 87(2)(b) hostage to force her to tell the detectives that he was not there. Det. Irizarry looked into the hole, but § 87(2)(b)'s body filled the entire frame and he could not see further into the apartment. Det. Irizarry stated that removing the peephole is "common practice" in Warrant Section operations.

Det. Murphy also said this was for officer safety, as they did not know who could be behind the door. Det. Murphy described looking into the hole left by the removal of the peephole, and looking § 87(2)(b) in the eye. Det. Murphy did not look long through the hole as he was concerned that § 87(2)(b) might poke him in the eye.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]

**Allegation D—Abuse of Authority: Det. Kevin Murphy threatened to arrest § 87(2)(b) on February 12, 2015.**

§ 87(2)(b) alleged that Det. Murphy said that § 87(2)(b) was a fugitive, and that § 87(2)(b) could be arrested for harboring a fugitive. Det. Murphy essentially corroborated these very words. Det. Irizarry also corroborated that Det. Murphy explained that § 87(2)(b) would be arrested for OGA if they found she was hiding § 87(2)(b) in her apartment.

Both officers described this utterance as an explanation of a statement of fact rather than a gratuitous threat. § 87(2)(g)

[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]

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Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date